

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

PAMELA RUTH APPLE,

Petitioner

VS.

MICHAEL EUGENE LIPSON,

Respondent

) Case Number: FDI-21-795080

) Hearing Date: June 11, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: RECONSIDERATION PURSUANT TO CCP 1008 (A) (B)

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Pamela Ruth Apple and Respondent Michael Eugene Lipson.
- 2) On 4/10/26, the Court issued an order: (a) declining to stay the 7/17/25 order appointing a discovery referee; (b) appointing Kate Merrill as discovery referee; (c) permitting Respondent to make a one-time withdrawal of \$50,000 from the CUSCO account to pay discovery referee, Kate Merrill; (d) denying Petitioner's request for attorney's fees under Family Code section 2030; and (e) denying Petitioner's request for advancement of funds. See Findings and Order After Hearing (FOAH) on 3/26/26 (file dated 4/10/26). The Court notes this matter was taken under submission after the 3/26/26 hearing.
- 3) On 4/23/26, Respondent filed an ex parte motion for reconsideration of the Court's order file dated 4/10/26 pursuant to Code of Civil Procedure section 1008, subsections (a) and (b). Respondent requests the Court modify the order as follows:

- a. Permit \$20,000 (instead of \$50,000) withdrawn by Respondent and paid to discovery referee, Kate Merrill; or
 - b. Vacate the Court's appointment of discovery referee, Kate Merrill.
- 4) On 4/23/26, the Court denied Respondent's request for emergency relief and set the matter for regular hearing on 6/11/26.
 - 5) On 5/29/26, Petitioner filed a Responsive Declaration in opposition to Respondent's motion for reconsideration wherein it appears Petitioner renews her request for Family Code section 2030 attorney's fees, which was denied in the Court's 4/10/26 order. Petitioner states Kate Merrill may no longer be available to serve as discovery referee and requests that \$20,000 be advanced to the first available of Kate Merrill or Scott Slomiak (who is an alternative discovery referee). Petitioner requests the Court vacate the 6/26/26 Status Conference and advance Petitioner \$20,000 from the CUSCO account.
 - 6) On 6/2/26, Respondent filed a Reply Declaration. Respondent states that there is no evidence that Kate Merrill requested \$50,000, and that the first time he heard the figure was from Petitioner's counsel during the 3/26/26 hearing. Respondent states that the actual amount owed was \$20,000, which Petitioner did not dispute in her Responsive Declaration. Attached as Exhibit B is a transcript from the 3/26/26 hearing.
 - 7) On 6/2/26, Respondent filed written objections to Petitioner's Responsive Declaration seeking to strike the declaration in its entirety for relevance, lack of foundation, improper argument, and violation of Family Code section 213.
 - 8) On 6/2/26, Respondent filed a Notice of Lodging in Support of Respondent's Reply Declaration.

B. Findings and Order

- 1) **The parties are ordered to appear.**